

February 17, 2016



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16220

EXPIRATION DATE: January 31, 2018

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Americase
Waxahache, TX
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of two specially designed packagings intended for the transport of prototype and low production lithium ion cells and batteries and equipment containing such cells or batteries. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Maritime Dangerous Goods (IMDG) Code other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. This special permit serves as an approval under § 173.185(g), as an "exemption" as defined in Part 7, Chapter 7.9, Section 7.9.1 of the IMDG Code (see IMO MSC/Circ. 1075-Granting Exemptions from the Provisions of the IMDG Code), and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the IMDG Code.

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4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(e) and Part 3, Chapter 3.3, Section 3.3.1, Special Provision 310 of the IMDG Code in that alternative packaging and equipment containing prototype or low production lithium ion cells and batteries are authorized.
5. BASIS: This special permit is based on the application of Americase dated July 1, 2014, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries*	9	UN3480	II
Lithium ion batteries contained in equipment*	9	UN3481	II

*Only prototype and low production lithium ion cells or batteries or equipment containing such cells or batteries may be transported under the terms of this special permit. "Low production" is defined as a production run of no more than 100 cells or batteries annually of a particular type.

7. SAFETY CONTROL MEASURES:

- a. Each cell and battery must be protected against short-circuits.
- b. Each cell and battery contained in equipment must be protected from short-circuits.
- c. Lithium metal cells, batteries, or equipment containing such cells or batteries are not authorized under the terms of this special permit.
- d. PACKAGING - UN standard packaging is required. Thermally insulated UN 4G fiberboard and UN 4B aluminum boxes identified as Model Numbers ENG-FBLIB-9100 and ENG-ATLIB-9100, respectively, may be used as outer packagings for transporting prototype and low production lithium ion cells and batteries, including those contained in equipment,

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provided that other applicable packaging requirements are met including:

1. For Model Number ENG-FBLIB-9100, cells and batteries, including those contained in equipment, may not have an aggregate Watt-hour (Wh) rating of more than 1,500 Wh (or 120 grams total equivalent lithium content);
2. For Model Number ENG-ATLIB-9100, cells and batteries, including those contained in equipment, may not have an aggregate Wh rating of more than 5,700 Wh (or 456 grams total equivalent lithium content);
3. Each cell, battery, and equipment containing such cells or batteries, must be surrounded by cushioning material that is non-combustible, and non-conductive;
4. The outer packaging must meet Packing Group I performance criteria; and
5. Persons offering packages for transportation must comply with the closure instructions accompanying the packaging. A copy of the closure instructions must be provided to persons offering the shipment.

8. OPERATIONAL CONTROLS:

- a. MARKING: Each package must be marked
 - i. "DOT-SP 16220" in accordance with § 172.301(c) in proximity to the markings and labels required by the HMR and the IMDG Code; and
 - ii. "FORBIDDEN FOR TRANSPORT BY AIRCRAFT - GROUND AND VESSEL SHIPMENT ONLY".
- b. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.
- c. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit, the HMR and the IMDG Code.

- d. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- e. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.
- f. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.
- g. For purposes of transportation by cargo vessel, this special permit also constitutes an exemption to the IMDG Code in accordance with Part 7, Chapter 7.9, Section 7.9.1.
- h. Any package that is damaged is not authorized to be loaded and transported.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Cargo Vessel or Rail Freight.
- 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: NICKSS